IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

Court Appeal Case No: CA(PHC) 0074/23

High Court of Embilipitiya Case No: RA/14/2022

Magistrate Court of Embilipitiya Case No: 86186/21

In the matter of an appeal under and in terms of the provisions of the High Court of the Provinces (Special Provisions) Act No. 19 of 1990 (as amended) to be read together with Articles 154P and 138 of the Constitution.

J.M.C. Priyadarshani,
The Competent Authority,
Plantation Management Monitoring Division,
Ministry of Plantation Industries,
Batharamulla.

APPLICANT

-Vs-

Arachchige Kamal Nanda,
Giligaran Kotasa,
Egburg Estate,
Suriyakanda,

RESPONDENT

AND BETWEEN

Arachchige Kamal Nanda,
Giligaran Kotasa,
Egburg estate,
Suriyakanda,

RESPONDENT-PETITIONER

-Vs-

J.M.C. Priyadarshani,
The Competent Authority,
Plantation Management Monitoring Division,
Ministry of Plantation Industries,
Batharamulla.

APPLICANT-RESPONDENT

AND NOW BETWEEN

Arachchige Kamal Nanda,
Giligaran Kotasa,
Egburg estate,
Suriyakanda,

RESPONDENT-PETITIONER-APPELLANT

Vs

J.M.C. Priyadarshani,
The Competent Authority,
Plantation Management Monitoring Division,
Ministry of Plantation Industries,
Batharamulla.

APPLICANT-RESPONDENT-RESPONDENT

Wickrama Arachchige Leelanath Wickrama Arachchi,
Competent Authority,

Sri Lankan State Plantations,
Corporation/Janatha Estate
Development Board,
Ministry of Plantations and
Community Infrastructure,
11th Floor, "Sethsiripaya",
Stage II,
Battaramulla.

SUBSTITUTED-APPLICANT-RESPONDENT-RESPONDENT

Before	:	**D. THOTAWATTA, J.** **K. M. S. DISSANAYAKE, J.**
Counsel	:	Vijith Singh with Chamodi Rajaneththi instructed by Dinesh de Silva for the Respondent-Petitioner-Appellant. Senaka De Seram instructed by Waruna Amunugama for the Substituted Applicant-Respondent- Respondent.
Written Submissions of the Respondent -Petitioner-Appellant tendered on	:	20.05.2026 and 03.08.2026
Written Submissions of the Substituted Applicant -Respondent- Respondent tendered on	:	29.05.2026

Decided on : 02.10.2026

K. M. S. DISSANAYAKE, J.

This is an appeal filed before this Court by the Respondent-Petitioner-Appellant (hereinafter called and referred to as 'the Appellant') against the order of the learned High Court Judge of the Sabaragamuwa Province holden in Embilipitiya dated 28.04.2023 (hereinafter called and referred to as "the HC order"), made in an application in revision bearing No. RA/14/2022 in the exercise of the revisionary jurisdiction vested in it by the Article 154P(3)(b) of the Constitution of the Democratic Socialist Republic of Sri Lanka (hereinafter called and referred to as "the Constitution").

The facts relevant to the instant appeal as can be gathered from the petition of appeal, may be briefly, set out as follows;

The Applicant-Respondent-Respondent (hereinafter called and referred to as 'the Respondent') had made an application for ejectment to the Magistrate Court of Embilipitiya in case bearing No. 86186/21 under and in terms of the provisions of Section 5 of the State Lands (Recovery of Possession) Act No. 07 of 1979 (as amended) (hereinafter called and referred to as 'the Act') for the eviction of the Appellant from a State Land as morefully described in the schedule to the application for ejectment (hereinafter called and referred to as the 'State Land').

The Appellant who appeared before the Magistrate Court of Embilipitiya in pursuant to the summons issued on him by Court had raised a number of defences as to the maintainability of the application on the premise a) that application for ejectment had not been instituted by the competent authority; that b) the affidavit filed along with the application for ejectment was defective; that c) particulars relevant to the proper identification of the state land had not been furnished to Court; and d) that there is an uncertainty as to which governmental institution does title to the state land lie. It was thus, contended

by the Appellant that in view of the defences so raised by him, the application for ejectment ought to be dismissed *in-limine*.

However, the learned Additional Magistrate of Embilipitiya in her order dated 15.06.2022 had having rejected the defences so raised by the Appellant as to the maintainability of the application together with the entirety of the Appellant's showing cause, proceeded to grant the application for ejectment thereby, directing eviction of the Appellant from the State Land by *inter-alia*, holding that the Appellant had shown no valid cause to the application for ejectment made to it by the Respondent under section 5 of the Act.

Being aggrieved by the said order of the learned Additional Magistrate of Embilipitiya dated 15.06.2022, the Appellant had invoked the extra-ordinary revisionary jurisdiction of the High Court of the Sabaragamuwa Province holden in Embilipitiya (hereinafter called and referred to as "the High Court of the Province") seeking to revise and set aside it. The learned High Court Judge of the Sabaragamuwa Province holden in Embilipitiya (hereinafter called and referred to as "the learned High Court Judge") had by the impugned order dated 28.04.2023, dismissed the application in revision by holding that the order sought to be revised is a lawful order; that, it has caused no miscarriage of justice; that, application in revision had not disclosed exceptional circumstances; and that the order sought to be impugned does not shock the conscience of the Court in view of the reasons stated therein.

It is from the HC order that the instant appeal has been preferred to this Court by the Appellant on the grounds of appeal morefully, set out in paragraph 06 '(ඒ)' to '(ඕ)' of the petition of appeal among any other grounds of appeal that may be urged by Counsel at the hearing of the appeal.

As manifest from a careful scrutiny of the grounds of appeal, and the written submissions of the Appellant, the instant appeal is mainly, three-fold, namely;

1) The Respondent is not the competent authority within the meaning of section 18 of the Act.

2) There is an uncertainty as to which governmental institution, does the title to the state land lie.
3) The affidavit filed along with the application for ejectment was defective.

Let me now, deal with them separately.

1) The Respondent is not the competent authority within the meaning of section 18 of the Act.

This contention was based on the premise that, in terms of section 18 of the Act, the Competent Authority must be such a person as defined in section 18 thereof, and therefore, it would be necessary that a Competent Authority is one coming within the ambit of the categories of persons enumerated in section 18 thereof, as a condition precedent to make an application under section 5 of the Act, but that the Competent Authority named in the application for ejectment in this instance, does not fall under any of the categories of persons enumerated therein, for; she had on her own volition, described herself in the application as well as in the affidavit filed in the Magistrate Court as Assistant Director of Plantation Management Monitoring Division, Ministry of Plantation Industries which position does not come within the purview of the categories of persons enumerated in section 18 of the Act unless specifically, authorized in writing so to act; however, there was nothing on the application for ejectment to show that, she had been authorized in writing to act as the Competent Authority under the provisions of section 18 of the Act, and therefore, she had no power vested in her to make the application for ejectment in this instance and as such the application for ejectment is bad in law and as such it ought to have been dismissed by the learned Magistrate *in-limine*.

Hence, the Appellant sought to contend the competency of the Competent Authority firstly, before the Magistrate Court and then, before the High Court of the Province and next before this Court in appeal.

Now, the pertinent question would be; **Is a person entitled to challenge the competency of the Competent Authority in an application for ejectment made to a Magistrate Court under section 5 of the Act by a Competent Authority?.**

It may now, be examined.

In view of sections 9 (1) and 9(2) of the Act, the person who has been summoned is not entitled to contest any of the matters stated in the application under section 5 of the Act and one of such matters to be stated in the application made under Section 5 of the Act is that the person making the application is a competent authority for the purposes of the Act.

The Respondent had in his affidavit filed along with his application under section 5 of the Act before the Magistrate Court of Embilipitiya clearly, and unequivocally, affirmed to the fact she is the Competent Authority within the meaning of the Act which fact cannot in any manner, be contested by the Appellant in view of sections 9(1) and 9(2) of the Act.

Furthermore, it was *inter-alia*, held by this Court in **CA(PHC)APN 29/2016**(supra) that "The Petitioner submitted that the Respondent was not the competent authority in respect of the lands vested with the SLSPC. Such an objection is not a matter that can be taken up before the learned Magistrate or in these proceedings. One of the factors to be stated in the application made under section 5 of the Act is that the person making the application is a competent authority for the purposes of the Act. In view of section 6 of the Act, a person who has been summoned cannot contest that the claimant is not a competent authority. That is an issue to be tested in appropriate proceedings."

In the written submissions, the Appellant cited a passage to us from the decision in **Kandaiah Vs. Abeykoon-Sri Kantha's Law Reports Vol IV pg 96** in support of the said contention to the following effect;

> "Let it be thought that these objections relate to technicalities it is important to consider the scope of the effect of this Act. In terms of section 3(1A) no person is entitled to any hearing or to make any representation in respect of a quit notice. At any inquiry held under section 9 consequent upon an application for ejectment, the person in possession or occupation of the land upon a permit or any other lawful authority granted by the state and currently in force. In terms of section 9(2) the Magistrate is precluded from calling any application made under section 5. The only relief available to a person dispossessed under the Act is the relief of an action for vindication of title brought against the state and allowed under section 12. Though stated in a negative form this provision envisages to my mind that the legislature recognized the possibility that a person with lawful title, inherent in which is the right to possession, could well be dispossessed upon the invocation of the Magistrate's jurisdiction under the Act if he is not able to produce a valid permit or other written authority granted by the state."

Those observations made by this Court in **Kandaiah Vs. Abeykoon(Supra)** too, is very much supportive of the view held by me as aforesaid, whereas, on the other hand, those observations will no doubt, totally, militate against the position so adverted to by the Appellant in support of the said contention that, he is entitled to contest the competency of the Competent Authority in an application for ejectment made to the Magistrate Court under section 5 of the Act by the Competent Authority.

I would, if I may say so, with all due respect that, principle enunciated by this Court in **Alwis Vs. Wedamulla, Additional Director General, Urban Development Authority 1997 [3] SLR 417** cited to us by the Appellant in support of the said contention, had not been acted upon and/or followed by the subsequent decision of this Court and therefore, it cannot be considered an authority for the proposition that **a person is entitled to challenge the competency of the Competent Authority in an application for ejectment**

made to a Magistrate Court under section 5 of the Act by a Competent Authority.

Hence, I would hold that, the contention so advanced by the learned Counsel for the Appellant, namely; the Respondent is not a competent authority within the meaning of the "Act", cannot in any manner, sustain both in fact and law and therefore, it should be rejected as rightly, and properly done both by the learned Additional Magistrate of Embilipitiya and the learned High Court Judge of the Province.

2) There is an uncertainty as to which government institution, does the title to the state land lie.

In essence, the Appellant seeks to contest the opinion formed by the Competent Authority and stated in the application for ejectment and the affidavit filed therewith that the subject matter of the application for ejectment is a State Land.

It is in this context, I would think it expedient at this juncture to examine the structure and/or the scheme embodied in the Act and the provisions contained therein with regard to an application that may be made to a Magistrate Court by a competent authority under section 5 thereof for the eviction of a person who in his opinion, is in unauthorized possession or occupation of a state land and for the recovery of the same.

Section 3 of the Act enacts thus;

> "3. (1) Where a competent authority is of the opinion
>
> (a) that any land is State land; and
>
> (b) that any person is in unauthorized possession or occupation of such land, the competent authority may serve a notice on such person in possession or occupation thereof, or where the competent authority considers such

service impracticable or inexpedient, exhibit such notice in a conspicuous place in or upon that land requiring such person to vacate such land with his dependants, if any, and to deliver vacant possession of such land to such competent authority or other authorized person as may be specified in the notice on or before a specified date. The date to be specified in such notice shall be a date not less than thirty days from the date of the issue or the exhibition of such notice.

(1A) No person shall be entitled to any hearing or to make any representation in respect of a notice under subsection (1).

(2) Every notice under subsection (1) issued in respect of any State land is in this Act referred to as a "quit notice ".

(3) A quit notice in respect of any State land shall be deemed to have been served on the person in possession or occupation thereof if such notice is sent by registered post.

(4) Every quit notice shall be in Form A set out in the Schedule to this Act."

Section 4 of the Act deals with the obligation to comply with a quit notice and it enacts thus;

"4. Where a quit notice has been served or exhibited under section 3

(a) the person in possession or occupation of the land to whom such notice relates or any dependants of such person shall not be entitled to possess or occupy such land after the date specified in such notice or to object to such notice on any ground whatsoever except as provided for in section 9,

(b) the person in possession or occupation shall together with his dependants, if any, duly vacate such land and deliver vacant possession thereof to the competent authority or person to whom he is required to do so by such notice."

Section 5 of the Act deals with the effect of non-compliance with a quit notice and it enacts thus;

5. (1) Where any person fails to comply with the notice provisions of section 4 (b) in respect of any quit notice issued or exhibited or purporting to have been issued or exhibited under this Act, any competent authority (whether he is or not the competent authority who issued or exhibited such notice) may make an application in writing in the Form B set out in the Schedule to this Act to the Magistrate's Court within whose local jurisdiction such land or any part thereof is situated

(a) setting forth the following matters

(i) that he is a competent authority for the purposes of this Act.

(ii) that the land described in the schedule to the application is in his opinion State land,

(iii) that a quit notice was issued on the person in possession or occupation of such land or was exhibited in a conspicuous place in or upon such land,

(iv) that such person named in the application is in his opinion in unauthorized possession or occupation of such land and has failed to comply with the provisions of the aforesaid paragraph (b) of section 4 in respect of such notice relating to such land, and

(b) praying for the recovery of possession of such land and for an order of ejectment of such person in possession or occupation and his dependants, if any, from such land.

(2) Every such application under subsection (1) shall be supported by an affidavit in the Form C set out in the Schedule to this Act verifying to the matters set forth in such application and shall be accompanied by a copy of the quit notice.

(3) Every application supported by an affidavit and accompanied by a copy of the quit notice under the preceding provisions of this section shall be referred to as an " application for ejectment ".

(4) No stamp duties shall be payable for any application for ejectment.

Section 6 of the Act deals with the role of a Magistrate upon receipt of an application made under section 5 thereof and it enacts thus;

“6. (1) Upon receipt of the application made under section 5, the Magistrate shall forthwith issue summons on the person named in the application to appear and show cause on the date specified in such summons (being a date not later than two weeks from the date of issue of such summons) why such person and his dependants, if any, should not be ejected from the land as prayed for in the application for ejectment.

(2) The provisions contained in the Code of Criminal Procedure Act shall, mutatis mutandis, apply to the issue of summons referred to in subsection (1) and the service thereof and other steps necessary for securing the attendance of the person summoned.”

Section 7 of the Act, makes provisions for an order for ejectment where no cause is shown and it reads thus;

"7. If on the date specified in the summons issued under section 6 the person on whom such summons was issued fails to appear or informs the Court that he has no cause to show against the order for ejectment, the Court shall forthwith issue an order directing such person and his dependants, if any, to be ejected forthwith from the land."

Section 8 of the Act, makes provisions as to the inquiry if cause is shown and it enacts thus;

"8. (1) If a person on whom summons has been served under section 6 appears on the date specified in such summons and states that he has cause to show against the issue of an order for ejectment the Magistrate's Court may proceed forthwith to hear and determine the matter or may set the case for inquiry on a later date.

(2) Where any application for ejectment has been made to a Magistrate's Court, the Magistrate shall give priority over all other business of that Court, to the hearing and disposal of such application, except when circumstances render it necessary for such other business to be disposed of earlier."

Section 9 of the Act deals with the scope of inquiry and it reads thus;

"9. (1) At such inquiry the person on whom summons under section 6 has been served **shall not be entitled to contest any of the matters stated in the application under section 5 except that such person may establish that he is in possession or occupation of the land upon a valid permit or other written authority of the State granted in accordance with any written law and that such permit or authority is in force and not revoked or otherwise rendered invalid.**

(2) **It shall not be competent to the Magistrate's Court to call for any evidence from the competent authority in support of the application under section 5**." [Emphasis is mine]

Section 10 of the Act makes provisions for order of ejectment and it reads as follows;

> "10. (1) If after inquiry the Magistrate is not satisfied that the person showing cause is entitled to the possession or occupation of the land he shall make order directing such person and his dependants, if any, in occupation of such land to be ejected forthwith from such land.
>
> (2) No appeal shall lie against any order of ejectment made by a Magistrate under subsection (1)."

Upon a careful analysis of section 5(1) of the Act in conjunction with sections 9(1) which enacts that "**At such inquiry the person on whom summons under section 6 has been served shall not be entitled to contest any of the matters stated in the application under section 5 except that such person may establish that he is in possession or occupation of the land upon a valid permit or other written authority of the State granted in accordance with any written law and that such permit or authority is in force and not revoked or otherwise rendered invalid**" and 9(2) thereof, which enacts "**It shall not be competent to the Magistrate's Court to call for any evidence from the competent authority in support of the application under section 5.**", it would become manifest that where the competent authority **is of the opinion** that; **a) any land is state land**, and **b) that any person is in unauthorized possession or occupation of such land**, the competent authority may serve a notice by any of the modes set out therein on such person in possession or occupation thereof, requiring such person to vacate such land with his dependents if any, and to deliver vacant possession of such land to competent authority or any other authorized person as may be specified in the notice on or before a specified date to be specified therein; and that **at such inquiry the person on whom summons under section 6 has been served shall not be entitled to contest any of the matters stated in the application under section 5 except that such person may establish that he is in possession or occupation of the land**

upon a valid permit or other written authority of the State granted in accordance with any written law and that such permit or authority is in force and not revoked or otherwise rendered invalid; and that **It shall not be competent to the Magistrate's Court to call for any evidence from the competent authority in support of the application under section 5.** [Emphasis is mine]

It was *inter-alia*, held by this Court in ***Farook vs. Gunewardene-Government Agent, Amparai*** **1980 (2) SLR 243**, at pages 245 and 246 that, "Section 9(2) is to the effect that the Magistrate cannot call for any evidence from the competent authority in support of the application under section 5, which means that the Magistrate cannot call upon the competent authority to prove that the land described in the schedule to the application is a State Land (Section 5(1)(a)(ii))……The structure of the Act would also make it appear that where the competent authority had formed the opinion that any land is state land, even, the Magistrate is not competent to question his opinion. Alternative relief is given by section 12 which empowers any person claiming to be the owner of a land to institute action against state for the vindication of his title within 6 months from the date of the order of ejectment and section 13 is to the effect that where action is instituted by a person, if a decision is made in favour of that person, he will be entitled to recover reasonable compensation for the damage sustained by the reason of his having been compelled to deliver possession of such land…".

It was *inter-alia*, held by this Court in **CA/PHC/41/2010 decided on 31.01.2017** that, "The party noticed is not entitled to challenge the opinion of the competent authority on any of the matters stated in the application….By this amendment, the opinion of the competent authority in relation to the state land was made unquestionable….".

It was *inter-alia*, held by this Court in **CA (PHC) APN 29/2016**-decided on **09.07.2018** that, "….He cannot contest any of the matters stated in the application made under section 5 of the Act. One of the matters required to

be stated in the application is that the land described in the schedule to the application is in the opinion of the competent authority state land. This fact cannot be contested by the person summoned....Hence, a dispute on the identity of the land cannot arise for consideration of the learned Magistrate. The identity of the land can arise for consideration only to the extent of examining whether the valid permit or other written authority produced by the party summoned is in relation to the state land described in the application. Where it is not, the Magistrate must issue an order of eviction in terms of the Act..."

It was *inter-alia*, held by this Court in **CA(PHC)48/2016-decided on 02.09.2025** that, "Under section 9 of the State Lands (Recovery of Possession) Act, as amended in 1983, the competent authority's opinion that land is a 'state land' is conclusive and not open to judicial challenge at the ejectment stage and the only permissible defence available to an occupier is to prove possession or occupation under a valid permit or written authority issued by the state with the burden of proof resting on the occupier, whose failure to establish such authority would necessitate an order of ejectment."

Upon a plain reading of section 5(1) of the Act together with sections 9(1) and 9(2) thereof and the judicial precedents referred to above, it becomes abundantly, clear that, where the competent authority had formed an opinion that any land is state land, even, the Magistrate is not competent to question his opinion and therefore, not open to judicial challenge at the ejectment stage in an application made to Court by a competent authority under section 5 of the Act.

However, although, there is no duty as such cast upon a competent authority by the provisions of the Act, nonetheless, the Respondent being the competent authority had clearly, identified the State Land as a part of the State Land referred to in the Field No. 24 ඒ.

Hence, the Appellant's next argument too, cannot sustain at least, for two reasons; **first being** that, he is precluded by section 9(1) and 9(2) of the Act

from raising such a contest on the land-the subject matter of the application made to Court by the Respondent being the competent authority; **the second being** that although, the Respondent-being the competent authority does not have any burden in an inquiry before the Magistrate so to do, nevertheless, the land in dispute had been properly, identified by the Respondent being the competent authority as aforesaid. [Emphasis is mine]

In the light of the law set out in section 5(1) of the Act to be read with sections 9(1) and 9(2) thereof and in the light of the law established by the judicial precedents as referred to above, it is my considered view that a dispute as to the identity of the land-the subject matter of the application under section 5 of the Act, **is wholly, foreign and utterly alien to a proceedings that may be initiated before a Magistrate Court by a competent authority for eviction of a person** who in his opinion, is in unauthorized possession or occupation of a land which in his opinion, is state land and therefore, such a defence to an application made to Court by a competent authority under section 5 of the Act is wholly, untenable in law, and therefore, not in any manner available to such a person who in his opinion of the competent authority, is in unauthorized possession or occupation of a state land for; the Legislature in enacting section 9 of the Act had never intended a defence as such to be made available to a person as such except only, for the defence expressly, and explicitly, made available therein.[Emphasis is mine]

There is a further point which would in my opinion, fortify and strengthen my view taken as aforesaid and let me now, examine it.

Upon a careful analysis of the Act, it becomes abundantly, clear that "Urgency" appears to be the hallmark of this Act as observed by this Court in ***Farook vs. Gunewardene-Government Agent, Amparai (Supra)***. Under section 3, 30 days notice shall be given. Under section 4, the person in possession is not entitled to object to notice on any ground whatsoever except as provided for in section 9 and the person who is in possession is required to vacate the land within the month specified by the notice. Under section 6,

the Magistrate is required to issue summons forthwith to appear and show cause on a date not later than two weeks from the date of issue of such summons. Under section 8(2) the Magistrate is required to give priority over all other business of that court. Under section 9, the party noticed can raise objections only on the basis of a valid permit issued by the State. Under section 10, if the Magistrate is not satisfied, "he shall make order directing ejectment forthwith and no appeal shall lie against the order of ejectment. Under section 17, the provisions of this Act have effect notwithstanding anything contained in any written law.

Besides, it was *inter-alia*, held by the Supreme Court in ***Senanayake Vs. Damunupola*-1982 (2) SLR 621** that, "The scope of the State Land (Recovery of Possession) Act was to provide a speedy or summary mode of getting back possession or occupation of 'State Land' as defined in the Act", which was cited with approval by this Court in case bearing No. **CA (PHC) 140/2013- decided on 10.10.2019**.

Hence, it becomes abundantly, clear upon a careful analysis of sections 9(1) and 9(2) of the Act in particular that the Legislature in enacting this special piece of legislation, had never intended for a protracted trial to be held by a Magistrate in an application made to it by a competent authority under section 5 of the Act when it had enacted section 9 thereto expressly, and explicitly, setting out in unambiguous terms the scope of such an inquiry.

In the light of the above, the scope of the State Land (Recovery of Possession) Act is to provide a speedy or summary mode of getting back possession or occupation of 'State Land' as defined in the Act as explicitly, observed by the Supreme Court in the decision in ***Senanayake Vs. Damunupola (Supra)***.

Hence, the contention so advanced by the learned Counsel for the Appellant is not entitled to succeed for; the opinion of the competent authority that the land in dispute is State Land, cannot in any manner, be questioned by a person summoned to show cause under section 6 of the Act, in view of the

provisions in sections 5, 9(1) and 9(2) of the Act and in view of the binding judicial precedents cited above.

In view of the law set out above, the Appellant in the instant appeal cannot in any manner, contest any of the matters stated in the application made under section 5 of the Act by the Respondent to the Magistrate Court of Embilipitiya. One of the matters so required to be stated in the application under section 5 of the Act is that the land described in the schedule to the application, is in the opinion of the Respondent being the competent authority, State Land. Opinion so formed by the Respondent being the competent authority, that it is in his opinion, State Land, cannot in any manner, be contested by the Appellant who was summoned under section 6 of the Act in view of sections 9(1) and 9(2) of the Act.

Hence, a dispute on the identity of the land morefully described in the schedule to the instant application made to Court by the Respondent, being the competent authority under section 5 of the Act, namely; that there is an uncertainty as to which governmental institution does title to the state land lie, cannot in law, be raised by him for consideration of the learned Magistrate of Embilipitiya for; he has expressly, been prevented and precluded by section 9(1) and 9(2) of the Act by raising a contest as such inasmuch as this is an issue to be adjudicated upon in appropriate proceedings by a Court of competent jurisdiction for; such a dispute as to the identity of the land in question, is **utterly, foreign and alien to proceedings as such initiated by the competent authority under section 5 of the Act**. [Emphasis is mine]

Hence, I would hold that the contention advanced by the Appellant in the Magistrate Court that there is an uncertainty as to which governmental institution does the title to the state land lie, ought to fail in law as rightly, held both by the learned Additional Magistrate of Embilipitiya and the learned High Court Judge of the Province.

3) The affidavit filed along with the application for ejectment was defective.

It was contended by the learned Counsel for the Appellant in the written submissions in the instant appeal before us that an affidavit filed along with the application for ejectment by the Competent Authority is not valid for failing to state the religion of the affirmant.

It should be observed that, a contention as such had never been raised by the Appellant before the learned Magistrate in the first place nor had it been raised by the Appellant before the High Court of the Province in the second place, in the context in which it was raised before this Court and therefore, it was a contention raised for the first time in appeal and as such it ought to be rejected *in-limine* for; the contention is not a contention based purely, on question of law but a contention based on mixed question of fact and law.

Besides, it was held by this Court in **P. I. Chandrasena and Others v Divisional Secretary, Madagama, CAM-01.08.2016** that, "An affidavit is not invalid for failing to state the religion of the affirmant, as per established jurisprudence on the State Lands (Recovery of Possession) Act.".

Hence, I would hold that, the next contention so raised by the learned Counsel for the Appellant is not entitled to succeed both in fact and law and as such it too, ought to be rejected *in-limine*.

Besides, the Appellant is precluded from raising a contest as such by section 9(1) and 9(2) of the Act as morefully, discussed above in an application for ejectment under section 5 of the Act.

Hence, I would hold that, the next contention so raised by the learned Counsel for the Appellant is not entitled to succeed both in fact and law and as such it too, ought to be rejected *in-limine* on this ground too.

The question that would next, arise for our consideration is as to the scope of the inquiry in proceedings that may be initiated by a competent authority under section 5 of the Act in a Magistrate Court and section 9 of the Act sets out the scope of the inquiry and it may be reproduced *verbatim* the same as follows;

"9. (1) At such inquiry the person on whom summons under section 6 has been served **shall not be entitled to contest any of the matters stated in the application under section 5 except that such person may establish that he is in possession or occupation of the land upon a valid permit or other written authority of the State granted in accordance with any written law and that such permit or authority is in force and not revoked or otherwise rendered invalid.**

(2) **It shall not be competent to the Magistrate's Court to call for any evidence from the competent authority in support of the application under section 5**." [Emphasis is mine]

It was *inter-alia*, held by this Court in ***Farook vs. Gunewardene-Government Agent, Amparai (Supra)*** that, "At the inquiry before the Magistrate, the only plea by way of defence that the Petitioner can put forward is that he is in possession or occupation of the land upon a valid permit or other written authority of the State granted in accordance with any written law and that such permit or authority is in force and not revoked or otherwise rendered invalid."

It was *inter-alia*, held in ***Muhandiram v. Chairman, No. 111, Janatha EstateDevelopment Board*** **1992 (1) SLR 110** at page 112 that, "Under section 9(1) of the State Lands (Recovery of Possession) Act No. 7 of 1979, the person on whom summons has been served (in this instance, the Respondent-Petitioner) shall not be entitled to contest any of the matters stated in the application under section 5 except that such person may establish that he is in possession or occupation of the land upon a valid permit or other written authority of the State granted in accordance with any written law and that such permit or written authority is in force and not revoked or otherwise rendered invalid..... The said section clearly reveals that at an inquiry of this nature, the person on whom the summons has been served has to establish that his possession or occupation is upon a valid permit or other written authority of the State granted according to the written law. The burden of

proof of that fact lies on that particular person on whom the summons has been served and appears before the relevant Court.".

It was *inter-alia*, held by this Court in **CA/PHC/41/2010(Supra)** that, "Under section 9 of the State Land (Recovery of Possession) Act, the scope of the inquiry is limited to the person noticed to establish he is not in unauthorized occupation or possession by establishing that;

1. Occupying the land on a permit or a written authority.
2. It must be a valid permit or a written authority.
3. It must be in force at the time of presenting it to Court.
4. It must have been issued in accordance with any written law."

It was *inter-alia*, held by this Court in **CA (PHC) APN 29/2016(Supra)** that, "A person who has been summoned in terms of section 6 of the Act can only establish that, he is in possession or occupation of the land upon a valid permit or other written authority of the State granted in accordance with any written law and that such permit or authority is in force and not revoked or otherwise rendered invalid. He cannot contest any of the matters stated in the application under section 5 of the Act."

It was *inter-alia*, held by this Court in **CA(PHC)48/2016 (Supra)** that, ".... the only defence available is to prove possession is upon a valid permit or written authority, issued in accordance with law, and which should be in force....".

In the light of the law set out in section 9 of the Act and the judicial precedent referred to above, at an inquiry of this nature, the person on whom the summons has been served (in this instance the Appellant) has to establish that his possession or occupation is upon a valid permit or other written authority of the State granted according to the written law and that such permit or written authority is in force and not revoked or otherwise rendered invalid.

In this instance the Respondent being the competent authority had already, formed an opinion that the land-the subject matter of the application, is a

State Land and that the Appellant is in unauthorized possession or occupation therein.

It is significant to observe that, it had never been the position of the Appellant taken up in the Magistrate Court that his possession or occupation of the land in dispute which in the opinion of the Respondent being the competent authority is State Land, is upon a valid permit or other written authority of the State granted according to the written law and that such permit or written authority is in force and not revoked or otherwise rendered invalid other than the positions so adverted to by him as aforesaid.

However, it is significant to observe that, not an iota of evidence had been adduced by the Appellant to establish that he is in possession or occupation of the State Land upon a valid permit or other written authority of the State, granted in accordance with any written law and that such permit or authority is in force and not revoked or otherwise rendered invalid as required by section 9 of the Act. Hence, the Appellant did not have semblance of such a permit or authority as envisaged by section 9 of the Act.

In view of the above, it clearly, appears to me that the Appellant had adduced not even an iota of evidence to satisfy the learned Additional Magistrate of Embilipitiya that he was entitled to the possession or occupation of the State Land as rightly, held by the learned Additional Magistrate of Embilipitiya.

Hence, I would hold that the learned Additional Magistrate of Embilipitiya was entirely, justified both in fact and law in making an order directing the Appellant and his dependents, if any, in occupation of the State Land as morefully, described in the schedule to the application made to Court by the Respondent being the competent authority, to be ejected forthwith therefrom.

In the circumstances, I would see no error both in fact and law in the order of the learned Additional Magistrate of Embilipitiya and therefore, it can sustain both in fact and law as rightly, held by the learned High Court Judge of the Province.

Hence, I would see no error both in fact and law in the order of the learned High Court Judge of the Province too, when he had proceeded to dismiss the application in revision filed by the Appellant before the High Court inviting it to invoke its extra-ordinary revisionary jurisdiction to revise and set aside the order of the learned Additional Magistrate of Embilipitiya for the reasons as enumerated in the HC order as referred to above.

In view of the foregoing, I would hold that, the instant appeal is not entitled to succeed both in fact and law.

Hence, I would proceed to dismiss the instant appeal with costs fixed at Rs. 75,000/- in addition to the costs of the courts below payable by the Appellant.

In the result, I would affirm the orders of both the learned High Court Judge of the Province and the learned Additional Magistrate of Embilipitiya.

JUDGE OF THE COURT OF APPEAL

D. THOTAWATTA, J.

I agree.

JUDGE OF THE COURT OF APPEAL